OXFORDSHIRE COUNTY COUNCIL'S RESPONSE TO CONSULTATION ON THE FOLLOWING DEVELOPMENT PROPOSAL

District: Swindon Borough Council
Application no: S/OUT/13/1555-2
Proposal: Outline planning application for up to 2,380 dwellings, mixed use local centres/ areas, community uses, sheltered and/or care accommodation, up to two primary schools, green infrastructure including formal and informal open space, play space, sports facilities, sustainable drainage, engineering works and including ground re-modelling, other infrastructure, demolition and the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road.
Location: Eastern Villages North, Eastern Villages Swindon

Purpose of document

This report sets out Oxfordshire County Council's view on the proposal.

This report contains officer advice in the form of a strategic localities response and technical team response(s). Where local member have responded these have been attached by OCCs Major Planning Applications Team (planningconsultations@oxfordshire.gov.uk).

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Strategic Comments

Comments:

Strategically, the A420 corridor is of major importance for Oxfordshire and its Local Enterprise Partnership, and the impacts arising from significant development proposed need to be carefully managed so that:

- The route is able to operate effectively, in line with its primary route status
- Local communities are able to access the corridor, including via junction upgrades or other measures as required
- The strategic public transport corridor which uses the route is further developed and enhanced, including access to it
- Opportunities are taken to enable better interchange between different forms of transport, e.g. Park & Ride.

The Oxfordshire Local Transport Plan 2015-2031, which is due to be updated in July 2016, contains the following which is relevant to this application:

- An A420 Corridor Strategy, acknowledging that it focuses on more local measures, that benefit the growing towns and communities along the A420, and ensuring their continued access to it. There is a growing need for this strategy to be further developed, with a 'step change' in approach that would see it consider more strategic transport proposals for the corridor.

- An updated Oxford Transport Strategy which contains proposals for Rapid Transit & Park & Ride to serve the A420 corridor – this development will increase demand to access jobs and destinations in Oxford and the 'Science Vale' area of southern Oxfordshire, benefitting Swindon residents.

The context for this is set out in the Statement of Common Ground, agreed with Swindon Borough Council in April 2014. There is a need to ensure that whatever is implemented in Swindon Borough does not undo the benefits we are seeking from the significant investment being made or proposed for the Oxfordshire network, which are focused on encouraging trips by sustainable modes.

It is also important to recognise the cumulative impact point, i.e. this application is not standalone and needs to be considered in the context of the other significant development proposed for this corridor.

Our response to the New Eastern Villages Supplementary Planning Document submitted last month and reproduced below, also summarises our view.

1. *Oxfordshire County Council believes the large increase in dwellings at the Swindon end of the A420 will increase the usage of this route towards Oxford and the Science Vale area. Modelling and trip assignments need to be assessed in order to understand what proportion of the new residents will be travelling along the A420 towards Oxford. It is Oxfordshire County Council's opinion that a significant proportion of the new trips created by the NEV will be eastbound on the A420 towards Oxford, exacerbating the congestion already experienced. The development will be required to mitigate its effects on the A420 (and other roads) within Oxfordshire. These works will need to conform to Regulation 123 of the Community Infrastructure Levy.*

2. *It is essential that the NEV development contributes towards bus service improvements that serve Oxford and employment centres in the Vale of White Horse adjoining district, specifically Science Vale. The development should fund a fast and frequent bus service to enable the new residents a good alternative to the personal car for commuting to work in this area.*

3. *Swindon Borough Council are part of the A420 Working Group which also includes Oxfordshire County Council Officers and Councillors, Vale of White Horse District Council, and Western Vale Villages Consortium. SBC are aware of the cross county boundary issues facing the A420. The application documents should include wording to commit SBC to fully assess the NEV impact on the Oxfordshire road network, and to ensure the development mitigates these impacts.*

Detailed transport comments (below) deal with the adequacy or otherwise of the detailed traffic assessment and modelling work, which need to be addressed.

Detailed education comments (below) indicate that new schools will need to be provided in a timely way, matched to the delivery of housing, as nearby schools in Oxfordshire will not have spare capacity and the strategy for provision of pupil places to serve this area rests with Swindon Borough.

Officer's Name: John Disley
Officer's Title: Policy & Strategy Manager
Date: 24 June 2016

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Transport

Comments:

This is a high level response by OCC, from reviewing the application submissions and supporting information and from that we can provide the following comments, with respect to the following key sections of the Transportation Assessment (TA):

1. TA Figure 9c – It is not understood, how it is possible that journey times on the A420 (route 7 & 8) can reduce and average vehicular speeds increase with the addition of development traffic and associated highway infrastructure (new junctions).

2. It is known that modelling artefacts can occur that due to assumed perfect knowledge by drivers are not borne out in reality, it is suggested that this is possible here and that it should be checked that credible calibration of modelling has occurred.

3. OCC contest the statement in section 9.15 that the delivery of Phase 1 will not significantly affect the road network, based on the information provided:
    a. The distribution would assume that, at the highest peak, 11% of trips are routed via the A420 (Figure 8d).
    b. However, Figure 10g, would assume only modest trip generation on the A420 and actually trip generation decreases in ‘2026 Phase 1’ and ‘2026 Phase 1A’; this does not seem credible?

4. It is, additionally, suggested that a reasonable assumption would be that for a development, such as this, that the prevailing pattern of trip distribution for Swindon would not be likely to be replicated:
    a. This is because of disparities between Oxfordshire house prices and those in Swindon. The proposed development should be assumed, in a robust assessment, to serve partly, as a commuter settlement to Oxfordshire.
    b. The logical corollary of this is that trips distribution to the A420 will be increased over that predicted, should mitigation not be provided to avoid this circumstance.
    c. Thus because the development would be most beneficial for access to the A420 and longer distance commutes with the resulting impact on the A420 corridor, greater than that predicted in the TA in all likelihood.
    d. Additionally a very basic calculation based on the total number of dwellings, trip rates and the trip distribution, quoted in Figure 8d, would suggest additional trips in the peak period of in excess of some 100 and not 34.
    e. The resulting predicted queues in 2026 on the A420 associated with all phases are not quoted and are crucial to any understanding by OCC of the predicted impact of the proposals.

f. OCC would additionally, like clarification on methodologies used and the overall cumulative impact of the 8,000 houses for the whole NEV allocation. Has this been applied, as committed development, in the models?

Cross Boundary Mitigation Suggested:

1. Given the foregoing, it is justified under the NPPF that, in order to reduce the quantum of the impact and promote sustainable transport, a requirement is imposed on any development that:
    a. A significant bus service contribution towards the Swindon to Oxford (route 66) and Swindon to Faringdon route to enhance these service frequencies to premium route standard.
        i. It is noted that it would not be operationally appropriate to operate the 66 through the development site due to extended journey times on an already lengthy route.
        ii. Therefore, bus stops on the A420 should be of high standard with sheltered and secure cycle parking to enable residents/employees the opportunity to 'cycle and ride'.
        iii. It is considered, however, that the route would be still relevant to the site and accessible for use by those living there, by the means suggested above and walking.

2. Developer funding should be sought to fund a comprehensive strategy for the A420 corridor, to be managed by the existing cross-boundary working group, such that national funding can be sought to develop and implement scheme proposals for this corridor.

3. The impact of the scheme on green spaces and public rights of way in Oxfordshire – needs to be assessed and accounted for, in order to assure sustainable transport is taken up to the fullest extent possible:
    a. This especially applies to the connecting route from: Rowborough Farm via the A420 to Bourton, as well as, the historic route of the Wiltshire and Berkshire Canal and restoring that as a recreation route, as well as, the aspiration of working towards a functioning canal again.
    b. A contribution (£50,000.00k) is required of the development to OCC or via the local parishes, to enable them to undertake access mitigation measures.
    c. Additionally a safe signalised control or a bridge/tunnel across the A420 for walkers, cyclists and equestrians is a requirement as a consequence of the development.

Officer's Name: Paul Yoward
Officer's Title: Senior Engineer
Date: 23 June 2016

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Education

Comments:

1. There is no objection in principle from an education perspective, provided that primary and secondary school places are provided within Swindon in a timely way, matched to the delivery of new housing in line with Swindon Local Plan policies SD1, CM1 and NC3.

2. As detailed in Oxfordshire's January 2014 response to the original application, it will be important that sufficient capacity is provided within Swindon schools in good time, as nearby schools in Oxfordshire will not have spare capacity.

3. It is welcomed that the amendments now proposed include a site for a second primary school, to be built if it is not possible to provide an extension to the existing South Marston village primary school – this is a sensible contingency measure to ensure sufficient primary school places are provided locally. Primary schools in the nearby area of Oxfordshire are under increased pressure from demands for places for children from significant new housing development, from families at the joint services academy and underlying population growth. Oxfordshire County Council is working with the Oxfordshire schools affected by population growth to plan expansion of capacity in line with local housing growth, but these schools will not have spare capacity for cross-boundary students.

4. It is also welcomed that the revised application now contains draft Heads of Terms which include the requirement for contributions to secondary education provision. As with primary schools, it will be important that Swindon secondary school capacity keeps up with local population growth, as the neighbouring Oxfordshire secondary school, Faringdon Community College, is already facing significant local growth and will not have spare capacity for cross-boundary students.

5. In Oxfordshire's January 2014 response, it was advised that the county council was then reviewing its home-school transport policy, and that it had been proposed that free transport could be limited to the nearest school, rather than the nearest or catchment school. For some Oxfordshire villages, the nearest secondary school is in Swindon, and it was advised that a change in policy could increase demand for Swindon secondary school places from Oxfordshire students. There was, therefore, potential for spare Swindon school capacity to be eroded faster than previously foreseen. This review has now been implemented, and transport limited to the nearest Oxfordshire school. As such, it is unlikely to have a significant impact on cross-border travel to school patterns.

6. Given the council's increased responsibilities under Section 7 of the *Childcare Act 2006* as extended by the *Childcare Act 2016*, it is recommended that careful attention is given

to the provision of sufficient childcare and early education provision, which could be through the new/expanded primary schools, and/or through inclusion within any neighbourhood/ community centres or premises suitable for use by private, voluntary and independent early education providers. Early education provision in Oxfordshire close to the county boundary is already well subscribed and facing significant local growth, and will not have spare capacity for cross-boundary children.

Officer's Name: Barbara Chillman
Officer's Title: Pupil Place Planning Manager
Date: 16 June 2016